

Muslima v. State of U.P.

Allahabad High Court · Division Bench · 15 October 2019 · Writ-C No. 31869 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5; recovery to abide EE decision.**

HEADNOTE

A consumer who challenges a recovery citation on the ground that the underlying electricity bills are incorrect may dispute and seek rectification of those bills by raising objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer. The writ was disposed with that liberty; objections so raised were to be decided expeditiously, if possible within a month, and the recovery was to abide the Executive Engineer's decision.

FACTUAL SUMMARY

Muslima petitioned the Allahabad High Court against a recovery citation dated 17 August 2019 issued for electricity dues. She attributed the citation to non-payment of bills which, she said, were themselves incorrect. The writ was heard by a Division Bench of Pankaj Mithal and Saral Srivastava, JJ. The Court was asked to interfere with the recovery on that billing complaint rather than to decide the correctness of the bills on the writ itself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Correctness of an electricity bill may be disputed and rectified by raising objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer. A writ against a recovery citation founded on alleged incorrect bills is disposed of with liberty to take that remedy; if objections are raised, the Executive Engineer shall consider and decide them expeditiously in accordance with law, if possible within a month, and the recovery shall abide that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS UNDERLYING THE RECOVERY CITATION

Left to the Executive Engineer under Clause 6.5; recovery to abide that decision. ¶ 1